



High Plains Property Maintenance, LLC.
14847 Madison Street Brighton, CO 80602
Mike Durrill - (303) 254-6695
Randy Mangel – (720) 810-9673

Project Name: Hyland Village HOA
Project Address: 98th and Sheridan, Westminster, Colorado
Project Contact: Tonya Higgins
Property Management: Advance HOA Management, Inc.
Contact Phone: (720) 782-5192

Landscape Maintenance Contract

I. TERMS:

- A. The term of this Agreement shall be twelve (12) months, commencing on November 1, 2025 and terminating on October 31, 2026, unless otherwise terminated in accordance with this Agreement.

II. DEFINITIONS:

- A. The term "Client" refers to Hyland Village Homeowners Association ("Association") or any duly authorized representative thereof, including its managing agent, Advance HOA Management, Inc.
- B. The term "Contractor" refers to High Plains Property Maintenance, LLC.
- C. The term "Service Area" refers to the landscaped and turf areas of the Association as shown on the site map approved by the Association and attached hereto as Exhibit A if map was provided previously.

III. GENERAL PROVISIONS:

- A. The Contractor shall provide all labor, materials, and equipment required to perform the maintenance operations specified in this Agreement and shall perform all work in a good, substantial, timely, and workmanlike manner, in accordance with this Agreement.
- B. The Contractor shall be responsible for damage to the Association's property that is directly and clearly caused by the Contractor's employees or subcontractors in the performance of the Work under this Agreement. The Association shall notify the Contractor in writing of any alleged damage within thirty (30) days of discovery and shall include a description and photos of the damage, if reasonably available. Upon receipt of such notice, the Contractor shall have a reasonable opportunity to inspect the damage. If the damage is confirmed to have been caused by the Contractor, the Contractor shall, at its option, repair the damage, replace the damaged item, or provide a reasonable credit against future invoices, within a reasonable period of time based on the nature of the work, weather, and material availability. The Contractor shall not be responsible for pre-existing conditions, normal wear and tear, acts of God, or damage caused by others outside of

the Contractor's control. Any claim for damage not reported within thirty (30) days of discovery shall be deemed waived by the Association.

- C. The Contractor will use reasonable care to avoid damage to trees, fencing, and structures from mowers and string trimmers. If damage is directly and clearly caused by the Contractor's equipment, the Contractor will repair the damage or, if repair is not reasonably feasible, provide a reasonable replacement or credit that is proportionate to the size, age, and condition of the damaged item. The Contractor shall not be responsible for pre-existing conditions, structural defects, or damage resulting from factors outside its control.
- D. The Contractor will provide grounds care and maintenance only within the Service Area identified on the Association's approved site map (Exhibit A). Services requested outside the Service Area shall be billed separately on a time-and-materials basis, if performed.
- E. The Contractor will use commercially reasonable efforts to keep beds, sidewalks, and curbs free of excessive weed growth in accordance with the weed control provisions of this Agreement. If the Association believes that service levels are not being met in a particular area, the Association shall notify the Contractor in writing and allow at least seven (7) days for the Contractor to correct the condition. If the Contractor fails to correct a documented service deficiency within such period, the Association may reasonably withhold a proportionate portion of the monthly payment related to the specific deficient service until the condition is remedied. Under no circumstances shall the Association withhold the entire monthly payment for conditions affecting only a portion of the property.

IV. **COMMUNICATION:**

- A. The Contractor will maintain regular communication with the Association's managing agent and will report any significant site issues observed during routine service. Phone calls and emails received during normal business hours will be returned within one (1) business day.
- B. For after-hours matters that the Association determines to be emergencies (i.e., situations where immediate action is reasonably necessary to prevent property damage or safety hazards), the managing agent may contact the Contractor using the contact information provided. The Contractor will make reasonable efforts to return emergency calls as promptly as practicable.
- C. If the Contractor is unavailable for an after-hours emergency and immediate action is required, the Association may authorize another contractor to perform the emergency work. The Contractor shall not be financially responsible for such work unless the emergency was caused directly by the Contractor's actions.
- D. This provision does not obligate the Contractor to provide 24-hour emergency services, nor does it authorize the Association to deduct costs for work performed by others from regular monthly payments, except as expressly provided in this Agreement.

V. **MAINTENANCE & SITE CARE**

A. **Scope of Services:**

The Contractor will perform the landscape maintenance services described in this Section V within the Service Area, subject to weather conditions, site access, and the limitations stated in this Agreement.

B. **Weekly Turf Services**

- 1. The Contractor will mow all irrigated turf areas within the Service Area once per week during the growing season, except in April and October, when mowing will occur approximately twice

per month or as conditions reasonably require. Turf height will generally be maintained at approximately three inches (3") during the season and adjusted as appropriate for the final cut of the year. All scheduling is subject to weather conditions, saturated turf conditions, water restrictions, and site access.

2. The Contractor will trim turf in areas inaccessible to mowers, including along curbs, fences, utility boxes, and other obstacles, to maintain a neat appearance.
3. Hard edging of sidewalks shall be performed once per month during the growing season to maintain a defined edge between turf and hard surfaces.
4. During weekly turf service visits, the Contractor will remove normal litter, small branches, and debris from turf and landscape areas within the Service Area. Removal of storm debris, construction debris, bulk dumping, or excessive material is not included and will be billed on a time-and-materials basis if requested.
5. Grass clippings will be blown from sidewalks and curbs after mowing. The Contractor will take reasonable care to avoid directing clippings into the pool area. If clippings enter the pool during Contractor operations, the Contractor will remove them on the same service visit, provided reasonable access is available.

C. Aeration

1. The Contractor will perform one (1) core aeration of irrigated turf areas during the Spring season, generally completed by mid-May, weather and site conditions permitting. Aeration will be performed only in areas where equipment access and turf conditions allow for safe operation.
2. Areas containing subsurface drip irrigation (e.g., Netafim), narrow tree lawns eight feet (8') wide or less, and any other areas identified by the Association or the Contractor as sensitive or unsuitable for aeration will be excluded from this service. The Contractor shall not be responsible for damage to irrigation or utilities in unmarked or undisclosed areas where aeration is normally performed.
3. A Fall aeration may be performed upon request by the Association for an additional fee of \$850.

D. Seasonal Clean-Up

1. Spring Clean-Up.
One (1) Spring clean-up is included and will generally be completed by mid-May, weather and site conditions permitting. Spring clean-up includes removal of winter debris, litter, and small branches from turf and landscape beds; removal of accumulated leaves in turf and beds; and light debris pickup in native areas and the retention pond consisting of normal trash only. Storm debris, flood debris, or excessive accumulation will be billed separately on a time-and-materials basis if requested.
2. Fall Clean-Up
Fall clean-up includes one (1) leaf removal visit in October-November with one (1) additional service visit in November-mid-December which acts as a final clean-up, weather permitting. Fall clean-up includes leaf removal from turf and landscape beds; and light debris pickup in native areas and the retention pond consisting of normal trash only. Storm debris, flood debris, or excessive accumulation will be billed separately on a time-and-materials basis if requested.

3. Payments shall not be withheld for seasonal clean-up work unless the Association provides written notice of a documented service deficiency and allows the Contractor a reasonable opportunity to correct it.

E. Shrub and Tree Care

1. Shrub Care.
The Contractor will perform two (2) seasonal shrub trimmings: one in early Summer and one in the Fall. These trimmings include light shaping and pruning for sidewalk and walkway clearance. Major rejuvenation pruning, renovation pruning, or corrective pruning is not included and may be performed upon request at an additional cost. Flowering shrubs will be pruned only at seasonally appropriate times. The Contractor shall not be responsible for reduced blooming caused by pruning requests that conflict with horticultural best practices.
2. Tree Care.
The Contractor will provide light pruning of tree branches up to ten feet (10') in height for the purpose of maintaining pedestrian and mower clearance. Seasonal removal of tree suckers at the base of trees is included. Structural pruning, large limb removal, disease management, storm-damaged tree work, or pruning requiring ladders or climbing is not included and will be billed separately if requested.
3. Tree Rings.
If requested by the Client the Contractor will maintain tree rings. Chemical edging may be applied around tree rings as needed to maintain a twelve to eighteen inch (12"-18") grass-free area. The Contractor is not responsible for tree decline, disease, storm damage, root issues, or pre-existing conditions not directly caused by Contractor operations. Any required tree replacement shall be the responsibility of the Association unless damage is clearly and directly caused by the Contractor.
4. Disposal.
Disposal of debris generated from seasonal shrub and tree trimming will be billed at \$325 per 7' x 14' dump trailer load. One load is estimated for Summer trimming and one load for Fall trimming.

F. Native Areas and Detention/Retention Ponds

1. Native Grass Areas. The Contractor will maintain an eight to ten foot (8'-10") "beauty band" along sidewalks, fences, and retaining walls adjacent to native areas. These areas will be mowed approximately every two (2) weeks during the growing season, weather permitting. Native grass areas near the pool and picnic area will be mowed once per month at maximum mower height. The larger native fields will receive one (1) seasonal mow. Line trimming, debris removal, or additional mowing of native fields beyond this single mow is not included and may be performed upon request at additional cost.
2. Trash and Debris Removal. During routine visits, the Contractor will remove normal litter and small debris from native areas and retention areas. Removal of storm debris, flood debris, silt, erosion material, dumped items, large branches, cattails, or excessive vegetation buildup is not included and will be billed at time and materials if requested.
3. Broadleaf Weed Control. Retention and native areas will receive up to two (2) broadleaf weed control applications per season, billed at \$47 per gallon applied. Applications will be made only in conditions suitable for native turf and with products appropriate for these areas.
4. Drainage Culverts and Pans. Light vegetation and loose debris will be cleared from drainage culverts and drainage pans once (1) per season to help maintain basic flow paths. Clearing of silt, sediment buildup, erosion repair, cattail removal, woody growth, or any work requiring digging or mechanical equipment is not included and may be performed upon request at an additional cost. Disposal fees apply for any removed material requiring off-site hauling.

5. Vegetation Handling and Drainage Limitations. Unless otherwise directed by the Association, vegetation cleared from retention basins may be left dispersed at the bottom of the basin in accordance with the Association's preference. The Contractor is not responsible for overall drainage performance, water flow issues, stormwater management compliance, erosion, or structural drainage failures. The Contractor's responsibility is limited solely to the light seasonal clearing described above.

G. Weed Control in Landscape Beds and Hard Surfaces

1. A pre-emergent herbicide will be applied in the Spring to appropriate rock and landscape bed areas to help reduce weed germination.
2. During the growing season, the Contractor will provide weekly weed control in landscape beds by pulling or spraying weeds as appropriate for the species and site conditions. The Contractor will use commercially reasonable efforts to keep beds maintained and weeds controlled; however, weed presence may temporarily increase following rain events, irrigation adjustments, or seasonal germination cycles.
3. Sidewalks, curbs, and other hard surfaces will be treated as needed to control vegetation growth. Vegetation on hard surfaces will be addressed during regular weekly service visits.
4. Invasive or deep-rooted weeds that require multiple treatments (e.g., bindweed, thistle, horsetail) may take several applications to suppress. Complete eradication of these species is not guaranteed and may require additional treatments billed separately if requested by the Association.

H. Bluegrass Turf Fertilization and Weed Control

1. Fertilization.
The Contractor will apply three (3) turf fertilizer treatments per season: one pre-emergent application in the Spring and two post-emergent applications during the growing season. Timing of applications may vary based on weather, site conditions, and product availability.
2. Broadleaf Weed Control.
Broadleaf weeds will be treated as needed during the season using appropriate selective herbicides. Multiple applications may be necessary for certain weed types depending on weather, weed maturity, and irrigation performance. Complete eradication of all weeds cannot be guaranteed.
3. Optional Crabgrass Control.
Application of a crabgrass control product may be performed at the Association's request for an additional cost of \$1,550 per application.
4. Notification and Posting
The Contractor will notify the Property Manager prior to any scheduled chemical applications and will post signs in accordance with standard landscape practices and regulatory requirements. Notification timelines may be adjusted due to weather conditions or scheduling changes.
5. Limitations
Turf performance, coloration, and weed suppression are influenced by irrigation adequacy, soil conditions, weather patterns, and environmental factors outside the Contractor's control. The Contractor is responsible only for proper application of products, not for outcomes resulting from factors listed above.
6. Optional Additional Fertilization
Additional fertilizer applications beyond the three (3) standard seasonal treatments may be performed at the Association's request and will be billed at time and materials (T&M). The

Contractor will provide an estimate of product and labor costs prior to performing any additional applications.

7. All fertilizer and herbicide applications will be performed in accordance with manufacturer recommendations and industry-standard best practices.

I. Pet Waste Stations

1. The Contractor will empty the two (2) existing pet waste station cans once per week and will replenish dog waste bags during each visit.
2. Dog waste bags will be billed at a flat rate of \$25 per station per week, for a total of \$50 per week for the two stations.
3. Any additional pet waste stations added by the Association after the commencement of this Agreement will be serviced upon request and billed at the same weekly rate, unless otherwise agreed in writing.
4. The Contractor is not responsible for damage to pet waste stations caused by vandalism, misuse, or acts outside the Contractor's control. Repairs or replacements requested by the Association will be billed at time and materials (T&M;).

VI. IRRIGATION SERVICES

A. Spring Activation

The Contractor will perform a full spring activation of the irrigation system, including opening system valves, pressurizing main lines, inspecting for visible leaks, testing operational zones, and programming controllers for seasonal startup. Activation timing may vary depending on weather conditions and frost depth.

B. Winterization

The Contractor will perform an annual winterization of the irrigation system, including shutting down system water supply, depressurizing lines, and blowing out irrigation zones with compressed air. Winterization timing will be determined based on weather trends to minimize freeze risk.

C. Monthly System Inspection

The Contractor will inspect each irrigation zone once per month during the irrigation season to verify proper coverage, function, and performance. Any deficiencies observed will be documented for repair.

D. Repairs and Maintenance

Repairs not caused by the Contractor will be billed at \$80 per hour plus materials/parts, unless otherwise specified. Emergency repair visits will be billed at \$105 per hour plus materials.

E. Repair Authorization and Monthly Limit

1. The Contractor may complete individual irrigation repairs under five hundred dollars (\$500) without prior approval. The Association acknowledges that multiple small repairs within a single billing cycle will routinely total more than five hundred dollars (\$500).
2. The Contractor may complete these repairs as needed to maintain system functionality. The Contractor will notify the Property Manager if the total cost of irrigation repairs reaches one thousand five hundred dollars (\$1,500) within a single billing cycle. Repairs will continue

unless the Association provides written direction to pause work, and the Contractor is not responsible for plant or turf decline caused by delayed repairs.

- F. Backflow Testing
Each backflow prevention device will be tested and certified annually for a fee of \$155 per device. Certification documentation will be provided upon completion.
- G. System Limitations
The Contractor is not responsible for irrigation system failures, water restrictions, inadequate system design, underground leaks, electrical failures, controller defects, pre-existing conditions, or coverage issues caused by system age or infrastructure limitations.
- H. Environmental and Water Restrictions
Water usage and irrigation scheduling may be limited by drought restrictions, pressure fluctuations, municipal mandates, and HOA-directed watering schedules. The Contractor is not responsible for turf stress, plant decline, or coverage issues resulting from such restrictions.
- I. Access Requirements
The Association is responsible for ensuring access to backflow locations, valves, controllers, and water sources. Delayed access may postpone service without constituting breach of contract.

VII. WINTER SERVICES

- A. Winter Site Visits.
During the winter months (November through March), the Contractor will visit the property twice per month to remove normal litter, small branches, and light surface debris from common areas. These visits do not include leaf cleanup or leaf removal, which is part of the Fall Clean-Up scope only. Storm debris, fallen limbs, or excessive accumulation will be billed separately at time and materials if requested.
- B. Optional Winter Watering Services.
Winter watering of trees or shrubs may be performed at the Association's request at a cost of \$1.89 per gallon applied, or \$75 per hour if the Association supplies access to water on-site. Winter watering will only be performed when temperatures, weather, and soil conditions allow water to be safely and effectively applied. Winter watering will not be performed during freeze conditions, on frozen soil, or when access or safety concerns prevent service.
- C. Limitations and Liability.
The Contractor is not responsible for winter plant loss, winterkill, desiccation, drought stress, freeze damage, or any plant decline resulting from environmental conditions outside the Contractor's control. Winter watering is intended as a supplemental service and does not guarantee plant survival.
- D. Water Access.
The Association is responsible for ensuring access to a safe, functional water source for any winter watering requested at the hourly rate.

VIII. SNOW & ICE MANAGEMENT SERVICES

- A. Service Triggers
Snow removal services will be performed when accumulation reaches: Two inches (2") on sidewalks and steps & Four inches (4") in alleys
- B. During significant storms, multiple service passes may be required.

C. Service Conditions

Snow removal timing may vary based on snow type, storm speed, refreeze conditions, and municipal plowing schedules. Heavy, wet snow may require earlier or more frequent service than lighter snow.

D. The Contractor will use reasonable judgment when determining service timing, and values the input of the Association when difficult decisions arise.

E. Ice Melt Application

Ice melt will be applied as needed to maintain reasonable pedestrian safety. The Contractor is not responsible for slip hazards resulting from refreezing, drifting, black ice, shade cycles, or sudden temperature drops.

F. Limited Liability

The Contractor is not responsible for damage caused by pre-existing pavement defects, cracked, lifting, or deteriorated concrete, freeze-thaw cycles, vehicles blocking service areas, ice formation caused by groundwater seepage or irrigation leaks

G. Access and Obstructions

The Association is responsible for ensuring access to all service areas. Vehicles, dumpsters, deliveries, or other obstructions may delay or prevent service without constituting breach of contract.

H. Storm Severity

During blizzards, rapid snowfall, drifting, or white-out conditions, response times may be impacted. The Contractor will resume service as soon as it is safe and reasonable to do so.

IX. INSURANCE

A. The Contractor shall maintain the following insurance coverage during the term of this Agreement: (i) Commercial General Liability Insurance with limits of at least \$1,000,000 per occurrence; (ii) Automobile Liability Insurance with limits of at least \$1,000,000; and (iii) Workers' Compensation Insurance as required by Colorado law.

B. The Association and its managing agent (Advance HOA Management, Inc.) may be named as additional insureds on the Contractor's Commercial General Liability policy for ongoing operations.

C. The Contractor will provide a certificate of insurance (COI) evidencing such coverage within a reasonable period after written notice of contract acceptance. Failure to provide updated COIs at policy renewal shall not constitute grounds for withholding payment unless the Contractor has been provided written notice and at least ten (10) business days to cure.

D. The Contractor is not responsible for ensuring that the Association maintains its own property or liability insurance coverage.

X. TERMINATION

A. Either party may terminate this Agreement with thirty (30) days' written notice delivered to the other party. Email is acceptable only if receipt is acknowledged by the receiving party.

B. Before either party may terminate for performance-related reasons, the terminating party shall provide written notice of the specific issue and allow ten (10) business days for the other party to cure the deficiency.

- C. If this Agreement is terminated, the Association shall pay the Contractor for all services performed through the effective date of termination. Both parties acknowledge that a substantial portion of the annual work is performed during the growing season, and therefore monthly payments do not represent equal monthly portions of service. Payment upon termination shall reflect the proportionally greater value of services performed during the growing season.
- D. Any outstanding invoices for work performed prior to the termination date must be paid in full on or before the termination effective date.
- E. Termination of this Agreement does not entitle either party to a refund of amounts properly billed and earned for work performed.

XI. PAYMENTS

- A. **Billing Cycle — Contracted Services.**
The Contractor will issue an invoice on the first day of each month for contracted services scheduled for that upcoming month. Payment is due on or before the last day of that month.
- B. **Billing Cycle — Additional/Non-Contract Services.**
All services performed outside the scope of the annual contract—including irrigation repairs, storm cleanups, supplemental applications, additional snow services, or any other time-and-materials work—will be invoiced on the first day of each month for services performed during the prior month.
- C. **Late Payments.**
Payments not received within fifteen (15) days after the due date will accrue a late charge of 1.5% per month (18% annually) on the outstanding balance until paid.
- D. **Payment Method.**
Payments may be made by check, ACH, or any other mutually accepted method. Payment processing delays by the Association's bank or agent do not alter due dates.
- E. **Withholding or Offsets.**
Payments may not be withheld, reduced, or offset unless the Association has provided written notice of a specific service deficiency and the Contractor has been given a reasonable opportunity to cure the deficiency as described in Section VII.
- F. **Annual Contract Amount.**
The Association shall pay the Contractor a total annual amount of \$47,340, payable in twelve (12) equal monthly installments of \$3,945 each.
- G. **Seasonal Workload Acknowledgment.**
The parties acknowledge that the Contractor performs a proportionally greater share of annual services during the growing season. As such, monthly installments do not represent equal monthly portions of service but serve as a convenient payment structure for both parties.
- H. **Nonpayment.**
If any invoice remains unpaid more than thirty (30) days after its due date, the Contractor may suspend services until all past-due amounts are paid in full. Suspended services do not constitute breach of contract.

XII. Labor Rates

The following hourly labor rates apply to all Time and Materials (T&M) services requested by the

Association or for any work performed outside the scope of this Agreement. Labor is billed in 30-minute increments with a one-hour minimum unless otherwise noted.

A. General Labor:

1. General Labor: \$_____ per hour per crew member
2. Emergency General Labor: \$_____ per hour per crew member

B. Irrigation Labor:

1. Irrigation Labor: \$_____ per hour per technician
2. Irrigation Emergency Labor: \$_____ per hour per technician
3. Parts and materials will be billed at cost plus standard markup.
4. Any non-emergency work expected to exceed \$500 will require written authorization from the Association.

C. Snow Labor

1. Equipment and Labor Rates (October 15 – May 15)

- a) Skid Loader: \$225 per hour (3-hour minimum)
Plow Truck: \$145 per hour (3-hour minimum)
ATV: \$125 per hour (3-hour minimum)
Snow Blower: \$115 per hour (3-hour minimum)
Hand Shoveler: \$75 per hour (6-hour minimum)
Ice Melt: \$1.35 per pound (50 lb minimum)

2. HOLIDAY LABOR 1.5X RATES

XIII. ACCEPTANCE

- A. This Agreement constitutes the entire understanding between the parties and supersedes all prior proposals, negotiations, and communications, whether written or verbal. No amendment or modification shall be valid unless made in writing and signed by both parties. By signing below, the parties acknowledge that they are duly authorized to execute this Agreement on behalf of their respective organizations and agree to all terms and conditions contained herein.

CONTRACTOR:

High Plains Property Maintenance, LLC

Authorized Signature _____

Printed Name & Title _____

Date _____

CLIENT:

Hyland Village Homeowners Association
(Managed by Advance HOA Management, Inc.)

Authorized Signature_____

Printed Name & Title _____

Date _____